

France's Évin Law on the control of alcohol advertising: content, effectiveness and limitations

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ABSTRACT

Aims To assess the effectiveness of the 2015 version of the French Évin Law that was implemented in 1991 with the objective of protecting young people from alcohol advertising. **Design** Data were obtained from survey questions measuring exposure and receptivity to alcohol advertisements that were introduced for the first time in the 2015 European School Survey Project on Alcohol and Other Drugs (ESPAD). **Participants and setting** A representative sample of 6642 10th–12th grade students (mean age 17.3 years) were interviewed in 198 schools in France by a self-administered questionnaire. **Measurements** Information was collected on alcohol advertising exposure in different media (outside billboards, internet, etc.) and receptivity to recent advertisements (attractiveness, incentive to drink, etc.). **Findings** The majority of students declared that they had been exposed at least once a month to alcohol advertisements in supermarkets (73.2%), in movies (66.1%), magazines and newspapers (59.1%), on billboards in streets (54.5%), and on the internet (54.1%). Concerning the last recalled advertisements, 27.8% remembered the beverage type, 18.2% the brand, 13% felt like having a drink after having seen the advertisement and 19.6% found the advertisement attractive (boys ranked significantly higher than girls for all these indicators; P -value < 0.05). **Conclusion** The 2015 version of the French Évin law does not appear to protect young people effectively from exposure to alcohol advertising in France.

Keywords Advertising, alcohol, Évin law, marketing, regulations, youth.

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INTRODUCTION

Although alcohol and wine are rooted in French culture, drinking patterns have changed in recent decades: consumption of pure alcohol has decreased from 25 l per inhabitant in 1960 to 12 l in 2014 [1]. However, in 2014, 8.4 million people aged 18–75 years reported regular alcohol consumption: on the Alcohol Use Disorders Identification Test (AUDIT-C), 31% were classed as occasional-risk drinkers and 8% as chronic-risk drinkers [2]. Binge drinking behaviours (six or more drinks in a single session) increased significantly from 54% in 2010 to 60% among the male 15–24 age group [3]. For 15–16-year-old students, heavy episodic drinking (HED, five or more drinks on one occasion) has also increased: in 1999, the figure for HED in the past 30 days was 33% compared to 44% in 2011 [4].

Alcohol abuse has serious consequences in France: it accounts for 49 000 deaths per year [5], it is a factor in

road traffic crashes, homicides and domestic violence, and its social cost was estimated to be €120 bn in 2010 [6].

Since 1960, the French government has implemented a range of alcohol control policy measures that has almost certainly played a role in decreasing alcohol-related harm over the last 40 years. These include prohibiting the sale of alcohol to under 18s, banning so-called 'happy hours' unless non-alcoholic beverages are also offered at promotional prices, reducing the authorized blood alcohol concentration (BAC) to 0.5 g/l for drivers and restricting alcohol advertising under the Évin Law. This paper focuses on the Évin Law that was passed in 1991 to protect young people from alcohol advertising [7]. It will first present the history of this law, its content and its development over the last 25 years. It will then examine how effective the law was in 2015 for protecting young people from alcohol advertising through the questions included in the French section of the European School Survey Project on Alcohol

and Other Drugs (ESPAD), from a representative sample of 6642 10th–12th-grade students.

THE ÉVIN LAW AND ALCOHOL: CONTENT, HISTORY, EVOLUTION AND EFFECTIVENESS

Current content

The Évin Law applies to any drinks over 1.2% alcohol by volume and contains three core measures. The first prohibits alcohol advertising through media targeted at young people, but other less intrusive media are allowed. Situations in which alcohol advertising is permitted are set out in the law: adult press, radio (between 12 a.m. and 5 p.m. on weekdays, between midnight and 7 a.m. on Wednesdays), billboards, online (internet and applications, except when young people are targeted and provided that the advertisements are not intrusive), inside points of sale (POSS) (with a maximum sign requirement of 0.35 m² and tastings: e.g. at wine fairs), on leaflets and mailshots, alcohol delivery vehicles, special events (traditional fairs, etc.), wine museums and on objects used for alcohol consumption (e.g. glasses). Any medium not listed in the Évin Law is banned: on television, in cinemas, festivals, cultural and sporting events (sponsoring), etc.

The second measure controls advertising content in authorized situations: product information must only contain factual/informative data and objective qualities (e.g. proof, origin, composition and means of production). Consequently, attractive advertisements with positive, evocative images and/or text associating alcohol with pleasure, glamour, success, sport, sex, opinion leaders, etc. are not allowed.

The third measure requires the health warning 'Alcohol abuse is dangerous for health' to appear on all alcohol advertisements.

History

The history of the Évin Law began in the 1980s, when a few doctors and some non-governmental organizations (NGOs) campaigned against the alcohol advertisements to which children were exposed on television [8]. This led to the passing of the Barzach Law, which came into force on 30 July 1987, that regulated advertisement content, required advertisements to carry a moderation message and set out the media in which the advertisement of alcoholic beverages was banned (television, children's magazines, sport stadiums and sporting events) [9]. Advertisements were authorized in the other media not listed under the law, which meant that the alcohol industry still had many other ways to advertise their products. In a bid to toughen this law, a group of five professors of medicine (Albert Hirsch, Claude Got, Maurice Tubiana, Gérard Dubois and François Grémy, dubbed 'the five wise men'

by the press) got together to rally public opinion and challenge the candidates of the 1988 presidential campaign [10]. They also met with politicians, including Claude Évin, who at the time was the campaign director for François Mitterrand. When Mitterrand was elected in 1988 and Claude Évin appointed Minister for solidarity, health and social protection, the latter called upon 'the five wise men' to draw up a report on alcoholism, tobacco use and road traffic collisions. The report recommended concrete measures, including a total ban of tobacco advertising and a partial ban of alcohol advertising [11]. These proposals met with strong opposition from economic actors, certain ministers (including the adviser to the President of the Republic), parliamentarians and senators with a constituency in wine-producing regions. The main counter-arguments were that there was very little evidence of the link between alcohol advertising and alcohol consumption (the scientific literature on this subject was limited at the time), and countries that had implemented bans had seen an increase in alcohol consumption [12]. The rallying of public opinion and journalists in a bid to overcome government hostility, along with the support of Claude Évin and other ministers, led finally to the adoption of the Évin Law, which was passed in January 1991.

Evolution

Since 1991, this law has been attacked and weakened constantly by active lobbying from alcohol and wine producers and retailers. For example, billboard advertising had been restricted initially to production and sale settings, but was permitted everywhere from 1994 ('zone of production' amendment; [13] p. 38). In 1991, plans to set up a special fund that would use 10% of alcohol advertising expenditure to finance preventative action never materialized. In 2009, the Bachelot Law [14] allowed online alcohol advertising (with the exception of sport websites and websites targeting young people), despite the fact that the internet is the most popular medium among young people, and despite strong opposition from NGOs [15]. In 2015, the Évin Law was weakened once again following intense lobbying from wine producers [16]: alcoholic drinks with a certification of quality and origin, and linked to a production region or to cultural, gastronomic or regional heritage, are no longer subject to the Évin Law's advertising restrictions. This means that producers of drinks with these characteristics (e.g. cider, beer, wine, whisky and vodka) will be able to use media that were previously banned (on television, in cinemas) or restricted (on the radio, in the press, etc.). Arguments for this amendment were based on the difficulty of referring to wine in the press (which, it must be pointed out, was not prohibited under the Évin Law) and the subsequent difficulties encountered in the promotion of

this French product—complications that were damaging to wine tourism, foreign trade and jobs [17]. This provision will come into force with the 2016 Health-Care System Law [18].

Effectiveness of the Évin Law for legally restricting exposure to alcohol advertising

Very few studies have evaluated the effectiveness of the restrictions on exposure to alcohol advertising proposed under the Évin Law. To our knowledge, only Cogordan, Kreft-Jais & Guillemont (2014) have studied the impact on alcohol consumption of social and economic factors (e.g. level of income, employment rate of women) and of different measures introduced in France after 1970 (e.g. a ban on the sale of alcohol to under-16s, advertising restrictions under the Évin Law, the legal limit of 0.5 g/l BAC for drivers) [19]. The authors concluded that compared to social factors, policy measures did not appear to have any significant impact for reducing alcohol consumption. However, the combined impact of the ban on the sale of alcohol to minors and the advertising restrictions under the Évin Law were linked to a decrease in alcoholic beverage consumption over time. Besides this study—which did not analyse the isolated effect of advertising restrictions—there is a lack of research on the effectiveness of the advertising restrictions set out in the Évin Law. To fill this gap, an experimental pool of questions on advertising exposure was included for the first time in the 2015 French European School Survey Project on Alcohol and Other Drugs (ESPAD). The introduction of these questions was prompted by (i) the debate that took place in France in 2015 between health sector actors and the alcohol industry, with the latter attacking the above-mentioned alcohol advertising restrictions, and (ii) research that highlighted a dose–response relationship between exposure to alcohol promotion and the onset of drinking and heavier drinking [20,21].

METHOD

From 1995, the ESPAD survey has been collecting data on substance use among students in over 30 European countries every 4 years [22]. The French ESPAD survey is coordinated by the French Monitoring Centre on Drugs and Addictions (OFDT) and is subject to approval by CNIL, the French data protection authority.

Design and sample

In 2015, French students were interviewed in classrooms by professional investigators from a leading market research company. Students completed a self-reported anonymous questionnaire during a 1-hour session under

the investigator's supervision. A parental consent letter was sent to all parents. A balanced random survey [23] was performed to select 198 schools in France on the basis of education type (senior high school and vocational school), location (rural or urban area) and sector (public or private). Two classes per school were sampled in which all the students were surveyed. To improve the representativeness of the sample and to minimize possible bias related to the proportion of absent students (13%) and non-participating classes (6%), data were re-weighted by margin calibration.

Final results are based on a nationally representative sample of 6642 valid surveys from 10th–12th-graders; 50.6% of respondents were female and the mean age was 17.3 (standard deviation 1.05).

Measures and analysis

The ESPAD survey includes 317 questions on substance use (e.g. prevalence of alcohol, tobacco and illicit substance use) and demographic variables (gender, age, etc.). In addition, the French Alcohol Marketing Exposure Scale (FAMES) was introduced in the 2015 survey to assess whether French adolescents were exposed and receptive to alcohol advertising. Students were asked how often (never/rarely in the year/one or two times per month/at least once a week/almost every day) in the last 12 months, they had seen or heard advertising or other marketing items on alcoholic beverages from the following list: outside billboards, public transport, advertisements or promotions in supermarkets, magazines and newspapers, radio, internet, gifts with an alcohol brand logo, alcohol brands in movies and video games, sport events and concerts. These media were chosen because they are likely to reach young people, be located in different social settings and be listed as authorized/not authorized under the Évin Law. Alcohol advertising on television and in cinemas is totally banned and well controlled by the Conseil supérieur de l'audiovisuel (an authority to protect audiovisual communication freedom) and, as such, these two media were not addressed. Other questions focused on the last advertisement for alcoholic beverages that respondents had seen or heard: recency (less than a week ago/less than a month ago/more than a month ago), perceived target of the advertisement (adults or young people of their age), beverage type/brand recall and persuasiveness (incentive to drink after having seen/heard the advertisement, advertisement attractiveness). The FAMES scale was pre-tested in focus groups on 47 10th-grade students to check question consistency (whether questions were understandable, not misleading, easy to answer, etc.).

Data analysis was carried out using SAS software and consisted in frequency estimates over all categorical variables. The χ^2 test (Rao-Scott chi-square test) was used

Table 1 Percentage of alcohol marketing exposure by gender during the last 12 months in the 2015 French ESPAD.

	Never	Rarely in the year	1 or 2 times per month	At least once a week	Almost every day
Males	4.8	6.0	19.2	36.7	33.3
Females	3.0	7.1	24.6	38.8	26.5
All	3.9 (a)	6.6	21.9 ^a	37.8	29.8 ^a

^aSignificant differences between males and females (P -value < 0.05).

to assess differences between gender groups, taking into account the cluster effects (school and class).

RESULTS

Declared exposure

Among respondents, 29.8% said that they had been exposed to alcohol advertisements almost every day during the last 12 months, boys being significantly more exposed (or receptive to exposure) than girls (33.3 versus 26.5%, for overall media) (Table 1). The proportion of students who were non-exposed or quasi-hermetic to advertising was less than 5%, boys more often than girls (4.8 versus 3.0%).

The major places of exposure were supermarkets: 73.2% of students claimed that they had seen advertising or promotions at least once during the last month (one or two times per month, at least once a week, almost every day) (Table 2). They also declared that they were exposed at least once a month through alcohol brand presence in movies (66.1%), magazines and newspapers (59.1%), billboards in streets (54.5%), internet (54.1%), on the radio (49.6%) and billboards on public transport (39.6%) (Table 2). Exposure was also frequent during sporting events or concerts (36.4%) through alcohol brand presence in video games (23.0%) and gifts (16.8%). More

Table 3 Percentage of recency of the last advertisement students have seen or heard in the 2015 French ESPAD.

	Less than a week ago	Less than a month ago	More than 1 month ago
Males	57.4	23.4	19.2
Females	47.2	28.1	24.7
All	52.2 ^a	22.7 ^a	22.1 ^a

^aSignificant differences between males and females (P -value < 0.05).

than 10% of students said they were exposed to advertisements almost every day in supermarkets through billboards in streets, on the internet or in magazines and newspapers.

Impact of recent advertising

The last advertising that students recalled dated back to less than a week for half of them (52.2%), less than a month for a quarter (22.7%) and more than a month for the remainder (22.1%) (Table 3). Boys ranked significantly higher than girls for the item 'less than a week ago'.

For advertisement recall, 39.4% of students who had seen advertising during the last 12 months recalled it enough to remember the beverage type (27.8%), the brand (18.2%), felt like having a drink after having seen or heard the advertisement (13%) or found it attractive (19.6%) (Table 4). Boys ranked significantly higher for all impact indicators studied (memory of beverage type, memory of brand, perceived attractiveness of the last advertising seen or heard, incentive to drink after having seen the advertisement). The more recent the advertising, the greater the incentive to drink: students were twice as likely to feel like having a drink after an advertisement that dated back to less than a week ago.

Two out of 10 students (19.4%), females more often than males, considered that the last advertisement they remembered was targeted at people of their age group

Table 2 Percentage of alcohol marketing exposure by settings and media during the last 12 months in the 2015 French ESPAD.

	Never	Rarely in the year	1 or 2 times per month	At least once a week	Almost every day
Supermarkets (advertising or promotion)	10.8	16.0	30.3	29.1	13.8
Billboards in streets	19.9	25.5	24.7	18.2	11.6
Internet	23.6	22.3	24.4	18.4	11.3
Magazines and newspapers	20.0	20.9	28.5	19.8	10.8
Radio	29.8	20.6	21.1	18.7	9.8
Alcohol brand presence in movies	13.6	20.3	34.6	22.5	9.0
Sport events and concerts	39.2	24.4	18.3	11.3	6.8
Billboards on public transport	35.7	24.8	20.6	12.5	6.5
Alcohol brand presence in video games	58.0	19.0	12.4	6.7	3.9
Gifts with a logo of an alcohol brand	55.2	28.0	11.2	4.0	1.6

Table 4 Percentage of recall and perceived effects (attractiveness, incentive) of the last advertisement for alcoholic beverages by gender among adolescents exposed during the last 12 months in the 2015 French ESPAD.

	<i>Males</i>	<i>Females</i>	<i>All</i>
Recalled the last advertisement that they had seen or heard	45.6	33.6	39.4 ^a
Recalled type of drink	34.2	21.8	27.8 ^a
Recalled brand	24.0	12.7	18.2 ^a
Felt like having a drink	15.4	10.8	13.0 ^a
Found the advertisement attractive	23.0	16.3	19.6 ^a
Did not recall	49.9	63.0	56.6 ^a
Did not answer	4.5	3.4	4.0 ^a

^aSignificant differences between males and females (P -value < 0.05).**Table 5** Percentage of target of the last recalled advertisement as perceived by students, by gender in the 2015 French ESPAD.

	<i>Males</i>	<i>Females</i>	<i>All</i>
Adults	34.2	23.6	28.6 ^a
People of your age group	17.6	21.0	19.4 ^a
Don't know	28.0	23.5	25.7 ^a
Don't remember	20.2	31.9	26.3 ^a

^aSignificant differences between males and females (P -value < 0.05).

(Table 5), whereas 28.6% thought that this advertisement addressed adults.

DISCUSSION AND CONCLUSION

Opinion is divided on the Évin Law, and it has been referred to as both a model [24] or an ineffective and under-evaluated measure [25,26]. As other countries (Ireland, Scotland, Estonia) are considering the implementation of a similar law, this paper will provide a useful source of reference for policymakers to determine if it could be considered a good model to follow.

According to the results of the first experimental FAMES survey, we can conclude that there is wide-ranging and frequent exposure to alcohol advertising among the French representative sample of 10th–12th-graders, over all investigated media and particularly for males. Recalled advertisements may also have a persuasive impact in terms of recall, incentive to drink and advertisement attractiveness.

In particular, students felt highly exposed to alcohol advertisements and promotions in supermarkets. This is worrying, as previous research has shown an association between exposure to in-store advertisements and alcohol use [27,28]. As the FAMES scale does not allow different

types of POS advertisements to be identified (shelf edging, display packs and stands, promotional stands, etc.), it is not possible to detail the specific in-store promotions to which young people were exposed and whether or not they are authorized under the Évin law. Future studies should monitor and identify the advertisements used currently in French POSs and examine their impact upon young people. Students also said that they were exposed to alcohol advertisements in public spaces through outside billboards that were banned originally under the 1991 Évin Law. Regarding online, magazine, newspaper and radio advertisements, these are authorized under the law unless they target young people. Our survey reveals that young people are still exposed to these types of media. There are various explanations for this finding. On one hand, young people have access (voluntarily or involuntarily) to adult-orientated media. On the other hand, previous monitoring surveys have concluded that the Évin Law was not always enforced and that some alcohol advertisements were still displayed in youth-targeted media. For instance, advertisements are displayed on music and event websites that are accessed widely by young people (e.g. MinuteBuzz, Deezer and Soonnight) [29]. Online advertising is a decisive exposure point, because young people spend a great deal of time on the internet. In addition, exposure to alcohol advertising on websites and social networks is correlated positively with alcohol-related perceptions and alcohol behaviours in minors [30,31]. FAMES highlighted that students were highly exposed to alcohol brands in movies. This result is consistent with previous studies that reveal a trend in alcohol brand placements in popular US movies that are released internationally [32]. This alcohol brand presence is problematic, as it can influence adolescents' incentive to drink [33,34]. In France, paid-for product placement in movies is not allowed, but enforcement of this restriction is complicated because it is difficult to prove the existence of a commercial contract. Finally, students reported exposure during sport events or concerts, even if official sponsorship is forbidden under the Évin Law.

To summarize, different conclusions can be drawn from all these results. First, had the Évin law not evolved since 1991 and remained closer to its founding principles, young people in France would not have been exposed to outdoor billboard and Internet advertising (authorized in 1994 and 2009, respectively). One way for France to prevent this kind of exposure in the future would be to reinstate the Évin Law as it was in 1991 with regard to outdoor billboards, and to follow the model of Finland with regard to the internet (in 2015 the country issued a statutory ban on digital marketing for alcohol products). Secondly, our survey reveals that restrictions proposed in the Évin Law for magazine and internet site headlines (alcohol advertisements authorized in the adult press or on internet sites) or the use of 'safe harbour' hours on the radio are not

effective measures to protect young people as they are still exposed to alcohol advertisements in these media. To prevent this exposure, it is recommended to ban access to these media completely (as Finland did for the internet) or to strengthen controls in France to ensure that these restrictions are enforced [29].

Although our findings are interesting, certain limitations need to be considered. First, FAMES is an exploratory scale, and even though it had been pre-tested it needs to be improved for future surveys (for instance, the question on POS advertisements should be more detailed). Secondly, exposure was measured only through declarative responses. Future surveys should be combined with the monitoring of alcohol advertisements to examine their presence objectively in the students' environment. Thirdly, as it is very likely that young people's advertisement exposure and receptiveness vary according to their own prior experience with alcohol, it would be worthwhile exploring this relationship in more depth. Finally, it must be noted that FAMES was implemented only once as a baseline and only in France in 2015. Future surveys need to be conducted in France to compare the effectiveness of the Évin law after the changes adopted in 2016 [18]. Questions on advertising exposure and receptivity could also be extended to future surveys in other countries to compare exposure in areas with more or less marketing restrictions.

Despite these limitations, our paper highlights that French students declare significant exposure to alcohol advertisements in 2015. However, this does not mean that the Évin Law is useless and ineffective.

First, the 1991 version of the Évin Law would clearly have been more effective than the 2015 version for protecting young people from exposure to advertisements. If countries want to learn from the French experience, they would be advised to base their future policies on the 1991 version of the law. They must also be prepared to counteract lobbying from the alcohol industry aimed at weakening alcohol control policies and marketing regulations [35–37].

Secondly, the Évin Law has been often flouted [38]. Since 1991, legal procedures have regularly condemned illegal alcohol advertisements: until 2015, the French NGO ANPAA (Association nationale de prévention en alcoologie et addictologie/National Association for the Prevention of Alcoholism and Addiction) won more than 80% of its 60 prosecutions brought to court. Therefore, it is recommended that countries develop controls and monitoring measures to ensure that advertising restrictions are respected.

Thirdly, until 2015, the Évin Law protected young people from alcohol advertisements on television and in cinemas. For example, under the law it was impossible for an American brand of beer to sponsor the 1998 Football

World Cup in France [39], no alcohol advertisements were broadcast on French television channels during the 2014 Football World Cup and no alcohol advertisements appeared in cinemas, thereby protecting minors from exposure to such advertisements. The evolution of the Law in 2016 means that alcohol promotion can be seen once again on French television screens, and this is a cause of concern [40].

Fourthly, due to the content regulation of the Évin Law, young people are less exposed to attractive advertisements associated with personal, sexual and social success [39].

Fifthly, a law is better than industry self-regulation or voluntary pledges that have turned out to be either not respected or ineffective [41–43].

Finally, laws such as the Évin Law are easy to apply and provide an inexpensive option for governments [44].

Declaration of interests

None.

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